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1 GEO. 6.]

*General Cemetery
Act, 1937.*

[Ch. xxiii.]



CHAPTER xxiii.

An Act to confer further powers upon the General Cemetery Company and for other purposes. A.D. 1937.
[6th May 1937.]

WHEREAS the General Cemetery Company (in this Act called "the Company") were incorporated by an Act passed in the third year of the reign of His late Majesty King William the Fourth intituled "An Act for establishing a General Cemetery for the Interment of the Dead in the Neighbourhood of the Metropolis" (in this Act called "the Act of 1832") and under the powers of that Act purchased lands at Kensal Green then in the county of Middlesex and now within the royal borough of Kensington and the metropolitan borough of Hammersmith and constructed a cemetery thereon : 2 & 3 Wm. 4 c. cx.

And whereas by an Act passed in the second year of the reign of Her late Majesty Queen Victoria intituled "An Act for enabling the General Cemetery Company to raise a further Sum of Money and for amending the Act relating to the said Cemetery" (in this Act called "the Act of 1839") further powers were conferred upon the said Company : 2 Vict. c. v.

And whereas it is expedient that the Company should be empowered to erect and maintain a crematorium for the cremation of human remains and to raise additional capital by the issue of shares or stock and by borrowing and that other provisions should be made as are in this Act contained :

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And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1. This Act may be cited as the General Cemetery Act 1937 and this Act and the Act of 1832 and the Act of 1839 may be cited together as the General Cemetery Acts 1832 to 1937.

Incorporation of
Acts.

2. The following Acts so far as the same are applicable for the purposes of this Act and are not inconsistent with the provisions of this Act are hereby incorporated with this Act (namely) :—

8 & 9 Vict.
c. 16.

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the payment of subscriptions and the means of enforcing payment of calls and the forfeiture of shares for non-payment of calls and with respect to the borrowing of money ;

26 & 27 Vict.
c. 118.

Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

Power to
establish
crema-
torium.

3.—(1) The Company may set apart a site for and build provide fit up equip and maintain a crematorium proper and sufficient for the cremation of human remains on the following lands (that is to say) :—

A rectangular piece of land situated in the metropolitan borough of Hammersmith belonging to the Company containing about 13,500 square feet and bounded by imaginary straight lines commencing at a point 435 feet measured in a northerly direction from the south wall of the cemetery of the Company and 49 feet measured in an easterly direction from the west wall of the said cemetery thence proceeding in a north-westerly direction parallel to the said west wall for a distance of 150 feet thence proceeding at an angle of 90 degrees in an easterly direction for

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a distance of 90 feet thence proceeding at an angle of 90 degrees in a south-easterly direction for a distance of 150 feet thence proceeding at an angle of 90 degrees in a south-westerly direction for a distance of 90 feet to and terminating at the point of commencement. A.D. 1937.

(2) The Company may erect and build adjoining to or in connection with any crematorium constructed under the powers of this Act a convenient and suitable chapel for the reception of the dead immediately previous to cremation and for the purpose of performing burial services therein together with such porches gardens colonnades columbaria or niches for the disposal of ashes and other buildings matters and things for such purposes as the Company may think proper.

(3) The land described in subsection (1) of this section and any other land which may be used for the purpose of providing a chapel porches gardens colonnades columbaria or niches for the disposal of ashes shall notwithstanding anything in section XXVI (Cemetery to be consecrated) of the Act of 1832 by virtue of this Act be free from the act or consequences of the consecration thereof.

(4) (a) No cremation of human remains shall take place in any crematorium of the Company until the plans thereof have been approved by the Minister of Health and the Company shall have certified to the Secretary of State that such crematorium has been completed is built in accordance with such plans and is properly equipped for the purpose of the disposal of human remains by burning.

(b) Every cremation of human remains in any crematorium of the Company shall take place in accordance with the provisions of sections 7 8 and 10 of the Cremation Act 1902 and any regulations made under that Act and those sections shall apply accordingly as though they were included in this Act with the necessary modifications. 2 Edw. 7. c. 8.

(5) The Company may demand and take such reasonable charges or fees for the cremation of any human remains in such crematorium as they think fit and such charges or fees shall be deemed to be part of the funeral expenses of the deceased.

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(6) The Company may apply to the purposes of this Act any funds or moneys which they now have or may hereafter have in their hands or any moneys which they have power to raise by shares or by mortgage and which may not be required for the purposes for which the Company were authorised to raise or borrow the same.

Amend-
ment of
Acts of
1832 and
1839.

4.—(1) (a) The Company shall pay to any such incumbent as is referred to in section XXVII (Company to pay a fee on interment of persons removed from certain parishes) of the Act of 1832 on the cremation at any crematorium of the Company of the body of any such person as is referred to in the said section the fees following (that is to say):—

(A) In case the ashes of such person shall be interred the same fee as would have been payable to such incumbent under the said section if the body of such person had been interred within any vault catacomb or brick grave within the consecrated part of the cemetery of the Company;

(B) In case the ashes of such person shall be disposed of otherwise than by interment the same fee as would have been payable if the body of such person had been interred in the open ground within the consecrated part of the cemetery of the Company.

(b) Section XXIX (Company to keep account of such fees and allow inspection thereof) of the Act of 1832 shall be read and construed as if—

(i) the words “or cremated in any crematorium of the Company” were inserted therein after the word “cemetery” where such word first appears in the said section;

(ii) the words “or cremation” were inserted therein after the word “interment” where such word first appears in the said section;

(iii) the words “or cremation” were inserted therein after the word “interment” where such word last appears in the said section.

(c) Section XXXI (Company to account for fees half yearly) of the Act of 1832 shall be read and construed as if the words “or cremation” were inserted therein

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after the word "interment" where such word first appears in the said section. A.D. 1937.

(d) Section XXXIII (Fees to be paid to the incumbent for the time being) of the Act of 1832 shall be read and construed as if the words "or cremation" were inserted therein after the word "interment."

(2) (a) The provisions of section X (For preventing nuisances in the cemetery) of the Act of 1839 shall be read and construed as if the words "or any crematorium therein" were inserted after the word "cemetery" where such word last appears in the said section.

(b) Section CIV (Preventing nuisances in the cemetery) of the Act of 1832 is hereby repealed.

5. The Company may subject to the provisions of Part II of the Companies Clauses Act 1863 raise any additional capital not exceeding in the whole forty-five thousand pounds nominal capital by the issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than five pounds nor shall any share or stock vest in the person accepting the same unless and until the full price of such share or stock shall have been paid in respect thereof. Power to raise additional capital.

6. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. New shares or stock to be subject to same incidents as other shares.

7. The capital in new shares or stock so created shall form part of the capital of the Company. New shares or stock to form part of capital of Company.

8. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be. Dividends on new shares or stock.

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Provisions
as to
payment
of com-
mission on
sale of
shares
or stock.

9. The Company when ordinary or preference shares or stock issued under the powers of this Act are to be offered for sale may pay a commission not exceeding five per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for any such shares or stock or procuring or agreeing to procure subscriptions whether absolute or conditional therefor:

Provided that—

- (a) the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid shall be disclosed in every prospectus advertisement or other document of the Company relating to the offer for sale of the shares or stock; and
- (b) nothing in this section contained shall affect any power of the Company to pay brokerage.

Restriction
as to votes
in respect of
preferential
shares or
stock.

10. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Limiting
dividend on
preference
capital.

11. The dividend on any preference shares or stock issued under the powers of this Act shall not exceed six pounds in respect of every one hundred pounds of such shares or stock actually paid up.

Power to
borrow.

12. The Company may from time to time in respect of the additional capital by this Act authorised borrow on mortgage of the undertaking of the Company as for the time being authorised any sum or sums not exceeding in the whole one-third of the amount of such capital which at the time of borrowing has been raised by the Company under the powers of this Act but no part of any such sum or sums shall be borrowed until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that shares or stock for the whole of the portion of the capital in respect of which the borrowing powers are to be exercised together with the premium if any realised or after allowing for the discount if any given on the sale thereof have been paid up.

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13. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole.

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For
appoint-
ment of
receiver.

14. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture
stock.

15. All moneys raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time forming part of the undertaking over all other claims on account of any debts incurred or engagements entered into by the Company after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Priority of
mortgages
and
debenture
stock over
other debts.

16.—(1) From and after the first annual general meeting of the Company after the passing of this Act the number of directors shall be eight but the Company may at that or any subsequent annual general meeting after due notice for that purpose vary the number of

Number
remunera-
tion and
rotation of
directors.

A.D. 1937. — directors but so that the number be not at any time more than eight nor less than five and may also determine the remuneration of the directors.

(2) At the annual general meeting to be held in every subsequent year the director who shall have been longest in office shall go out of office.

(3) The qualification of a director shall be the proprietorship in his own right of at least fifty shares in the capital of the Company.

(4) Section LVII (The first general meeting to choose directors) section LX (Service of directors) and section LXI (Five directors to form a quorum) of the Act of 1832 are hereby repealed.

Auditors.

23 & 24
Geo. 5. c. 51. **17.**—(1) At the first annual general meeting of the Company after the passing of this Act two persons who shall be proprietors and respectively possessed of not less than ten shares in the capital of the Company (in this Act called “the proprietor auditors”) and an auditor (being a member of one or more of the bodies named in subsection (3) (b) of section 239 of the Local Government Act 1933) (in this Act called “the professional auditor”) shall be elected and appointed auditors of the Company.

(2) At the second annual general meeting of the Company after the passing of this Act one of the proprietor auditors (to be determined by lot or otherwise by them) and the professional auditor shall go out of office and cease to be auditors of the Company and persons qualified as aforesaid shall be elected auditors in their place. At the succeeding annual general meeting of the Company the one remaining of the proprietor auditors elected at the previous annual general meeting and the professional auditor shall go out of office and cease to be auditors of the Company and their place shall be supplied in like manner. At the annual general meeting of the Company to be held in any subsequent year one of the proprietor auditors who shall have been longest in office and the professional auditor shall go out of office and cease to be auditors of the Company and their place shall be supplied in like manner.

(3) (a) Notwithstanding anything in this section it shall be lawful for the Company at the second annual

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general meeting of the Company after the passing of this Act or at any subsequent annual general meeting to determine that thereafter the office of the proprietor auditors or either of them shall no longer be filled. A.D. 1937.

(b) Subject to the provisions of paragraph (a) of this subsection if the Company determine in accordance with the provisions of this subsection that the office of one only of the proprietor auditors shall no longer be filled the remaining proprietor auditor and the professional auditor shall go out of office and cease to be auditors of the Company at the annual general meeting of the Company to be held in any subsequent year and their place shall be supplied by persons qualified to be elected in their place.

(4) It shall be lawful for the directors to appoint some other professional auditor to fill any vacancy caused by the death resignation or disqualification of a professional auditor of the Company and every such professional auditor so appointed shall continue in office only until the next annual general meeting of the Company when his appointment shall either be confirmed or such other person be appointed to succeed him as the meeting shall determine.

(5) Section LXIII (Auditors may be appointed) so far as it prescribes the number and qualification of auditors section LXIV (Service of auditors) and section LXV (For supplying vacancies among the auditors) of the Act of 1832 are hereby repealed.

18. From and after the passing of this Act the Act of 1832 shall be read and have effect as if the sections set forth in the schedule to this Act were substituted respectively for the following sections of the Act of 1832 (namely) :— Further amendment of Act of 1832.

Section LII (First and other general meetings of Company);

Section LVIII (General meetings to consist of not less than twenty persons possessed of one hundred shares);

Section LIX (Notice of adjourned meetings);

Section LXVIII (If any director or auditor become disqualified his office to be vacant);

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Section LXXIV (Meetings of proprietors may be specially convened);

Section LXXVI (Notice of meetings how to be given);

Section LXXXV (Directors empowered to make calls);

Section XCII (Accounts to be made up annually and dividend declared).

Saving for
London
Building
Acts and
Town Plan-
ning Act.

20 & 21 Geo. 5.
c. clviii.
25 & 26 Geo. 5.
c. xcii.
22 & 23 Geo 5.
c. 48.

19. Nothing in this Act shall prejudice or affect the operation of or derogate from any provision of—

- (a) the London Building Acts 1930 and 1935 or any byelaw or regulation for the time being in force thereunder; or
- (b) the Town and Country Planning Act 1932 or any scheme or order for the time being in force under that Act or under any Act repealed by that Act.

Costs of
Act.

20. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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The SCHEDULE referred to in the
foregoing Act.

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LII. There shall be a General Annual Meeting of the said Company once in every calendar year and also such and so many Special General Meetings of the said Company as shall be convened in manner hereinafter provided; of which said General Meetings and Special General Meetings Ten Days Public Notice at the least shall be given by Advertisement in some one London newspaper and by notice delivered personally or by post at the last known or usual address of each proprietor on the register of the Company and every such Notice of a Special General Meeting shall specify the Purpose for which such Special General Meeting is called; and such General Meetings and Special General Meetings of the said Company, may be adjourned from Time to Time, and from Place to Place, as shall be found expedient.

General
Meetings
of Company.

LVIII. If at any General Meeting, or if at any Special General Meeting, there shall not be seven persons present within One Hour from the Time appointed for such Meeting, no Choice of Directors shall be made, nor shall any Business be done, but in such Case there shall be another Meeting of the said Company at the same Place at the Expiration of Seven Days, then next; and if at such adjourned Meeting there shall not be seven persons present, within One Hour from the Time appointed for such adjourned Meeting, such adjourned Meeting shall stand adjourned to the Seventh Day next following, and so from Time to Time as often as the Case shall happen, until at some Adjournment of such General Meeting there shall be a sufficient Number of Proprietors present as last aforesaid, when the Meeting shall proceed to Business; and the Directors for the Time shall continue to act and have the same Powers as they had and were possessed of until new Directors shall be appointed as aforesaid.

General
Meetings
to consist
of not less
than seven
persons.

LIX. Notice of every adjourned Meeting shall be given by Advertisement in some one London newspaper and by notice delivered personally or by post at the last known or usual address of each proprietor on the register of the Company.

Notice of
adjourned
Meetings.

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If any
Director or
Proprietor
Auditor
become
disqualified,
his office to
be vacant.

LXVIII. If any Director shall after his Election cease to hold Fifty Shares at the least in his own Right in the Capital of the Company, or if any Proprietor Auditor after his Election or Appointment shall cease to hold Ten Shares in his own Right in the capital of the Company, his Office shall thereupon become vacant.

Meetings of
Proprietors
may be
specially
convened.

LXXIV. Any Ten or more Proprietors of the said Company, holding in the aggregate Fifty Shares or upwards in the said Undertaking, upon which all Calls actually previously made shall have been paid and satisfied, may at any Time, by Writing under their Hands left at the Office of the said Company require the Directors of the said Company to call a Special General Meeting of Proprietors of the said Company, so as such Requisition fully express the Object for which such Special General Meeting is required to be called; and in case of Neglect or Refusal of the said Directors to call such Meeting for the Space of Twenty-one Days next after such Notice in Writing shall have been so given as aforesaid, the same may be called by such Ten or more Proprietors, by giving Fourteen Days Notice thereof in some one London newspaper and by notice delivered personally or by post at the last known or usual address of each proprietor on the register of the Company and the said Company are hereby authorised to meet in pursuance of such Notice, and such of the Proprietors thereof as shall be present shall proceed to the Execution of the Powers by this Act given to the said Company with respect to the Matters so specified in such Notice; and all Acts of the major Part in Votes of the Proprietors of the said Company, met together at any such Special General Meeting, shall be as valid, with respect to the Matters specified in such Notice, as if the same had been done at a General Meeting held at the Time hereinbefore appointed for holding the same.

Notice of
Meetings,
how to be
given.

LXXVI. All Notices herein directed to be given of any General or Special General Meeting of the Proprietors of the said Company, or of any Adjournment thereof respectively, or to any of the said Proprietors, and not herein otherwise provided for, shall be signed by the Chairman or Deputy Chairman of the said Company, or by the Proprietor who may be elected Chairman at any such Meeting, or by the Clerk of the said Company, and shall be given by Advertisement inserted in some one London newspaper and by notice delivered personally or by post at the last known or usual address of each proprietor on the register of the Company; and such Notices, when so published and given, shall be deemed and considered the same as if personally served.

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LXXXV. The said Directors shall have power from Time to Time to make such Calls of Money from the Subscribers to and Proprietors of the said Undertaking, to defray the Expenses of or carry on the same, as they from Time to Time shall find necessary for those Purposes, so that no such Call shall exceed the Sum of Five Pounds upon each Share which any Person shall or may be possessed of or entitled to in the said Undertaking; and such Calls shall not be made but at the Distance of Three Calendar Months at the least from each other, and Twenty-one Days Notice at the least shall be given of all such Calls by Advertisement in some one London newspaper and by notice delivered personally or by post at the last known or usual address of each proprietor on the register of the Company; which Money so called for shall be paid to such Persons and in such Manner as the said Directors shall from Time to Time order and appoint; and every Owner or Proprietor of any Share in the said Undertaking shall pay his or her rateable Proportion of the Money to be called for as aforesaid to such Persons and at such Times and Places as the said Directors shall from Time to Time direct and appoint; and if any Owner or Proprietor of any such Share shall not so pay such his or her rateable Proportion, then and in such Case, and so often as the same shall happen, such Owner or Proprietor shall pay Interest for the same after the Rate of Five Pounds per Centum per Annum from the Day appointed for the Payment thereof, up to the Time when the same shall be actually paid; and if any Owner or Proprietor of any such Share shall neglect or refuse so to pay his or her rateable Proportion, together with Interest, if any, accruing for the same, for the Space of Two Calendar Months after the Day appointed for the Payment thereof as aforesaid, then it shall be lawful for the said Company or for the said Directors to sue for and recover the same in any Court having competent jurisdiction; or the said Company or the said Directors may and they are hereby authorised to declare the Shares belonging to any Person so refusing or neglecting to pay any such Call, together with Interest, in manner last aforesaid, to be forfeited, and to direct the same to be sold, subject to the Provisions of this Act: Provided nevertheless, that no Advantage shall be taken of any Forfeiture of any Share in the said Undertaking until Notice in Writing under the Hand of the Clerk or Treasurer of the said Company, of such Share having been declared by the Directors forfeited, shall have been given or sent by the Post to, or left at the last known Place of Abode of the Proprietor of such Share or of the Clerk of such Corporation, as the Case may require, nor until the Declaration of Forfeiture thereof by the said Directors shall have been confirmed either at an Annual General Meeting of the said Company, or at a Special General Meeting of the said Company to be called for that

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Directors
empowered
to make
calls.

A.D. 1937. Purpose and to be respectively held after the Expiration of Three Calendar Months at the least from the Day on which such Notice of Forfeiture shall have been given or sent as aforesaid; and after such Forfeiture shall have been confirmed by such Annual or Special General Meeting, the said Company, by the same or any other Annual or Special General Meeting, shall have Power to direct the said Directors to dispose of the Shares so forfeited, and the said Directors may and they are hereby authorised in that Case to sell and dispose of such Shares at Public Auction or by Private Treaty, and together or in Lots, or in such other Manner and for such Price as they may think fit; and an Affidavit, sworn to by some credible Person not interested, before any Justice of the Peace, or Master of the Supreme Court of Judicature (Chancery Division) stating that such Call had been made by the said Directors, and such Notice thereof as aforesaid given, and that such Default as aforesaid had been made in Payment thereof, in respect of the Share or Shares so sold, and that the same Share or Shares had been declared to be forfeited, and such Declaration had been confirmed in manner aforesaid, shall be sufficient Evidence of the Facts therein stated; and the Purchaser or Purchasers of such Share or Shares shall not be bound to see to the Application of his or their Purchase Money, nor shall his, her, or their Title to such Share or Shares be affected by any Irregularity in proceeding to such Sale.

Accounts
to be
made up
annually,
and
Dividend
declared.

XCII. The said Company, or the Directors of the said Company, shall and they are hereby required to cause a true and particular Account to be kept, and annually made up and balanced to some Day in the Month of April or May in each Year, (and also half yearly to some Day in the Month of November or December in each Year, if any General or Special General Meeting of the said Company shall from Time to Time so direct,) of the Money received by the said Company, or by the Directors or Treasurer of the said Company, or otherwise, for the Use of the said Company, by virtue of this Act, and of the Charges and Expenses attending the making, maintaining, and carrying on the said Undertaking, and of all other the Receipts and Expenditure of the said Company or of the said Directors up to the Period at which such Account shall be made up and balanced; and at the subsequent Yearly Meeting of the Proprietors of the said Undertaking next after such Day in the Month of April or May, or at the subsequent General or Special General Meeting of the said Proprietors next after such Day in the Month of November or December, (if the said Account shall be so directed to be made up and balanced at any Day in either of the last-mentioned Months,) to be from Time to Time held as aforesaid, or at some Adjournment thereof respectively, a Dividend shall

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be made out of the clear Profits of the said Undertaking, unless such Meeting shall declare otherwise; and such Dividend shall be at and after the Rate of so much per Share upon the several Shares held by the Members thereof in the Joint Stock of the said Company, as such Meeting shall think fit: Provided also, that no Dividend shall be paid in respect of any Share after a Day appointed for Payment of any Call of Money in respect thereof until such Call shall have been paid.

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